

Stereo. H C J D A 38.  
**JUDGMENT SHEET**

**THE LAHORE HIGH COURT, LAHORE**  
**JUDICIAL DEPARTMENT**

**Writ Petition No.60262 of 2019**

Javaid Ali Shah vs. Evacuee Trust Property Board, etc.

**J U D G M E N T**

|                  |                                                                                                                          |
|------------------|--------------------------------------------------------------------------------------------------------------------------|
| Date of Hearing  | <b>24.03.2026</b>                                                                                                        |
| For petitioner:  | Syed Tassadaq Mustafa Naqvi, Syed Tassadaq Murtaza Naqvi and Barrister Naqsh Fatima Naqvi, Advocates for the petitioner. |
| For Respondents: | Rana Zahid Nasim Shahid, Advocate for the respondents-ETPB.<br>Mr. Shuja ul Hakeem, Assistant Attorney General.          |

**Hassan Nawaz Makhdoom, J.-** Through this consolidated judgment, Writ Petition No. 60262 of 2019 and Writ Petition No. 8930 of 2020, arising out of identical facts, involving common questions of law, challenging similar departmental actions and show cause notices issued by the same authority, are being disposed of together.

2. Briefly the facts are that the petitioners were initially appointed on daily wages and their services were subsequently regularized pursuant to policy decisions of the Federal Government. Later on, certain allegations surfaced regarding the legality of their appointments/regularization, whereupon show cause notices dated 27.04.2015 were issued to the petitioners under the applicable service laws. The said show cause notices were earlier assailed by the petitioners before this Court through writ petition No.13544 of 2015. During pendency of the said petition, the competent authority, in order to rectify procedural deficiencies and to ensure compliance with due process of law, withdrew the earlier show cause notices *vide* formal orders dated 06.03.2017 and 19.04.2017 with a specific and categorical stipulation that *de novo* disciplinary proceedings shall be initiated. Consequent upon such withdrawal, appropriate applications were moved before this Court, and the earlier writ petition was disposed of *vide* order dated 19.05.2017 as having become infructuous, as the grievance of the petitioners stood redressed at that

stage. Thereafter, in pursuance of the aforesaid orders, the competent authority initiated *de novo* disciplinary proceedings strictly in accordance with the Government Servants (Efficiency & Discipline) Rules, 1973. Fresh charge sheets and statements of allegations were served upon the petitioners, who submitted their replies and participated in the inquiry proceedings. Upon conclusion of the inquiry, fresh show cause notices were issued, which are impugned through the instant writ petitions.

3. Learned counsel for the petitioners contends that the impugned show cause notices are devoid of lawful authority and amount to an abuse of process. It is submitted that earlier show cause notices dated 27.04.2015, based on identical allegations, were withdrawn by the respondents during the pendency of the previous writ petition, whereafter the said petition was disposed of as having become infructuous; hence, the subsequent re-initiation of proceedings on the same factual premise, in the absence of any fresh material or legally sustainable justification, is impermissible in law. It is further urged that the purported *de novo* inquiry has been set in motion in a mechanical manner, without identifying any defect in the earlier proceedings or recording cogent reasons necessitating such course, and that mere invocation of the expression “*de novo* proceedings” does not satisfy the legal requirements. Learned counsel adds that although a writ petition against a show cause notice is ordinarily not maintainable, yet where such notice is *ex facie* without jurisdiction or constitutes a repetition of previously withdrawn proceedings, the constitutional jurisdiction of this Court is rightly attracted. Foremost reliance has been placed upon Collector of Customs and Central Excise, Peshawar and 2 others vs. Abdul Waheed and 7 others (2004 SCMR 303), to submit that where appointments are made by the competent authority, the appointees cannot be penalized for procedural lapses attributable to the authority itself. Further reliance has been placed upon Secretary to Government of N.W.F.P., Zakat/Social Welfare Department and another vs. Saadullah Khan (1996 SCMR 413) and Syed Sikandar Ali Shah vs. Auditor-General of Pakistan and another (2002 PLC (C.S.) 1027), to maintain that employees should not suffer on account of administrative irregularities or political influence beyond their control.

Also places reliance upon Pakistan Defence Officers' Housing Authority and others vs. Lt. Col. Syed Jawaid Ahmed (2013 SCMR 1707), emphasising that constitutional jurisdiction may be invoked even at the stage of show cause notice where the action is *ex facie* without jurisdiction, *mala fide*, or in violation of due process. In addition, reliance has been placed upon Messers J.K. Brothers Pakistan (PVT) Ltd. through Director vs. The Additional Commissioner Inland Revenue and another (2016 PTD 461), to argue that a writ petition is maintainable against a show cause notice where the same is issued without lawful authority or is tainted with *mala fide*. Learned counsel has further placed reliance upon recent pronouncements including cases available on the website of Hon'ble Supreme Court of Pakistan as Fazal Hussain vs. Commissioner, Dera Ghazi Khan Division Dera Ghazi Khan (2025 SCP 404), Shahid Hussain Mahessar vs. Federation of Pakistan through office of the Prime Minister, Islamabad and others (2025 SCP 409) and Sana Ullah Sani vs. Secretary Education Schools and others (2024 SCMR 80), to contend that a show cause notice must conform to mandatory legal requirements and that deviation therefrom vitiates the entire proceedings. Lastly, reference has been made to Rana Tahir Hussain Khan vs. Capital Development Authority and others (2022 CLC 454) to argue that in the absence of a statutory backing, initiation of *de novo* proceedings is without lawful authority and liable to be struck down. It is prayed that the impugned notices be set aside.

4. Conversely, learned counsel for the respondents submits that the petitions are not maintainable, as the impugned show cause notices are interlocutory and no final adverse order has been passed. It is argued that earlier show cause notices were lawfully withdrawn through orders dated 06.03.2017 and 19.04.2017, specifically for initiation of *de novo* proceedings, and on that basis the earlier writ petition was disposed of as infructuous. It is contended that the petitioners, having accepted such withdrawal and availed its benefit, are estopped from challenging the fresh proceedings; that the doctrine of approbate and reprobate squarely applies. It is further submitted that *de novo* proceedings were initiated strictly in accordance with law, the petitioners were afforded full

opportunity of defence, and have already submitted replies to the impugned notices and no prejudice is likely to be caused. Also contends that the plea of double jeopardy is misconceived, as earlier proceedings were withdrawn and not decided on merits. It is finally prayed that the petitions, being premature and devoid of merit, be dismissed.

5. Arguments heard. Record perused.

6. It is an admitted position on record that the earlier show cause notices dated 27.04.2015 were withdrawn through formal orders dated 06.03.2017 and 19.04.2017, with a specific and unequivocal stipulation that *de novo* proceedings shall be initiated. For the sake of ready reference, the relevant orders are reproduced hereunder:-

*“Dated. 06 MAR 2017*

**ORDER:**

*Show Cause Notice No. 3065 dated 27.04.2015 regarding the appointment regularization of Mr. Farhat Ali Shah, Assistant/Inspector presently posted at Survey Branch, ETPB is hereby withdrawn **subject to de-novo proceeding is initiated to adopt the due process of law.***

*BY ORDER OF THE SECRETARY”*

-----  
*“Dated. 19 APR 2017*

**ORDER**

*Show Cause Notice bearing No. 3061 dated 27.04.2015 issued to Mr. Javed Ali Shah, UDC / Sub-Inspector, Survey Branch, ETP Board, Lahore is hereby withdrawn with immediate effect **for the de-novo proceedings.***

*BY ORDER OF THE AUTHORIZED  
OFFICER/SECRETARY”*

*(Emphasis supplied)*

This factual position stands borne out from the record and has not been disputed by the petitioners. It is equally an admitted position that on the basis of such withdrawal, **Writ Petition No. 13544 of 2015** filed by the petitioners was disposed of by this Court vide order dated 19.05.2017 as having become infructuous.

7. The legal consequence of such disposal is that the grievance of the petitioners stood redressed at that stage, and the respondents were left at liberty to proceed further in accordance with law. In these circumstances, the contention of the petitioners that fresh proceedings could not have been initiated is wholly misconceived and devoid of substance.

8. Once the earlier proceedings were withdrawn with an express declaration to initiate *de novo* proceedings, the respondents were fully competent to proceed afresh, particularly to ensure compliance of due process and adherence to the principles of natural justice. The doctrine of approbate and reprobate squarely applies in the present case. The petitioners, who acquiesced in the withdrawal of the earlier impugned show cause notices and allowed their previous writ petition to be disposed of on that very basis, are estopped from subsequently assailing the legal consequences flowing from such withdrawal. It is a settled principle of law that a litigant cannot be permitted to blow hot and cold in the same breath, nor to assume inconsistent positions before a Court of law.

9. Furthermore, the impugned show cause notices are admittedly not final orders. The petitioners have already submitted replies thereto and have been afforded opportunities of hearing. It is trite law that a writ petition is not maintainable against a mere show cause notice, unless the same is shown to be without jurisdiction, *mala fide* or *coram non judice*, which is not the case here.

10. This Court has given anxious consideration to the case law relied upon by the learned counsel for the parties. It is by now a well-entrenched principle of law that a writ petition under Article 199 of the Constitution is not maintainable against mere issuance of a show cause notice, charge sheet or statement of allegations, being interlocutory steps in the disciplinary process, which do not determine rights of the parties nor visit the delinquent with any civil consequences. The Hon'ble Superior Courts, in a consistent line of authorities relied upon by learned counsel for the respondents, including Muhammad Iqbal versus Government of Punjab through Chief Secretary, Punjab and another [2015 PLC (C.S.) 1503], Muhammad Bashir and others vs. Azad Government of the State of Jammu and Kashmir [2016 PLC (C.S.) 659], and Saeed Ahmad and others v. Chairman, O.G.D.C.L. and others (2019 PLC 277), have held that constitutional jurisdiction ought not to be invoked at a premature stage when the matter is still pending before the

competent authority and the petitioner has an adequate opportunity to defend himself in the departmental proceedings. It has further been held in Iram Shahhadi vs. Principal School of Nursing Mayo Hospital, Lahore and others [2017 PLC (CS) 943] and Abdul Majeed vs. President National Bank of Pakistan through President Head Office and 3 others [2018 PLC (CS) Note 14] that no vested or substantive right of an employee is infringed merely by issuance of a show cause notice, as the same is only a tentative step to afford an opportunity of hearing in compliance with due process. Likewise, the Honourable Supreme Court of Pakistan in Federation of Pakistan through Secretary Establishment Division, Islamabad vs. Shafaqat-ur-Rehman Ranjha and others [(2021 SCMR 153 / 2021 PLC (C.S.) 405)] authoritatively held that where, after completion of departmental inquiry, the competent authority, for valid and recorded reasons, directs a *de novo* inquiry, such direction does not amount to double jeopardy, particularly when no final order has yet been passed against a delinquent civil servant. It was further held that the competent authority is fully empowered under the relevant rules to disagree with the findings of the inquiry officer and, upon recording reasons, either pass a final order or order a fresh inquiry in order to ensure fairness and compliance of due process of law. The Honourable Supreme Court also laid down that where a statutory right of appeal is available under the Civil Servants (Appeal) Rules, 1977, the same must be availed and, in the presence of such alternate remedy, the High Court ought to refrain from exercising its extraordinary constitutional jurisdiction under Article 199 of the Constitution, which is equitable and discretionary in nature. Consequently, a constitutional petition challenging such interlocutory or procedural orders was held to be not maintainable, especially when the matter squarely falls within the domain of Service Tribunal under Article 212 of the Constitution.

11. Similarly, in Tariq Khan and another v. Additional Director General (North), Federal Investigation Agency, Islamabad and others (2025 SCMR 453) the Hon'ble Supreme Court held that the expression "*de novo*" signifies a fresh inquiry from the very beginning, whereby the competent authority is not bound by, nor required to rely upon, any

previous findings or conclusions. It was authoritatively laid down that a *de novo* inquiry may be directed where the earlier proceedings suffer from serious procedural lapses, violations of principles of natural justice, lack of proper opportunity of cross-examination, or where findings appear to be based on conjectures and surmises, rendering it difficult to ascertain whether the charges have lawfully been established. It was further emphasized that such course is adopted to secure the ends of justice and to ensure strict compliance with the requirements of fair trial and due process guaranteed under Article 10-A of the Constitution. Consequently, where foundational defects exist in the earlier inquiry, the competent authority is fully justified in setting aside the defective proceedings and ordering a fresh inquiry so that the matter may be decided on the basis of legally admissible evidence and after affording full opportunity of defence to the delinquent.

12. On the contrary, the case law relied upon by learned counsel for the petitioners pertains to situations where actions were either without jurisdiction, tainted with *mala fide*, or resulted in immediate civil consequences. The same is clearly distinguishable on the set of facts and does not apply to the present case, where no such exceptional circumstance has been demonstrated. Thus, the cited precedents are respectfully found to be distinguishable and are of no avail to the petitioners. Even otherwise, it is a well-established principle of law that every case is to be adjudicated on the basis of its own distinct facts and attending circumstances, and no universal or straitjacket formula can be applied irrespective of the factual matrix involved. The precedential value of a judgment, therefore, is to be appreciated in the context of the facts upon which it is founded, and any application thereof must necessarily be guided by the similarity (or otherwise) of the underlying circumstances in each case

13. It is also evident that disputed questions of fact and law are involved in the matter, including the validity of appointments, conduct of inquiry, and findings recorded therein, which cannot be adjudicated upon in exercise of constitutional jurisdiction. A constitutional petition is not a substitute for regular departmental or statutory proceedings and is not

meant to determine such contested factual controversies. This Court, therefore, has consciously restrained itself from embarking upon deeper examination of the merits of the allegations or the correctness of the inquiry proceedings, lest any observation made herein may prejudice the case of either party before the competent authority. It is expected that the said authority shall proceed with the matter strictly according to law, after affording due opportunity of hearing to the petitioners. Needless to observe that after final adjudication by the competent authority, the aggrieved party shall be at liberty to avail remedies available under the law, including recourse to appropriate *fora*, if so advised.

14. The contention regarding violation of Articles 4, 10-A and 25 of the Constitution is devoid of merit. The very initiation of *de novo* proceedings is aimed at ensuring adherence to due process and the constitutional guarantee of fair trial. It has been submitted on behalf of the respondents that the petitioners shall be afforded full and adequate opportunity to defend themselves during the course of proceedings; therefore, no prejudice is likely to be caused to them.

15. As regards the plea of double jeopardy, the same is misconceived, as the earlier proceedings were not concluded on merits but were withdrawn altogether. The initiation of fresh proceedings, therefore, cannot be equated with trying a person twice for the same offence. The record further reflects that the petitioners actively participated in the proceedings and submitted replies to the impugned show cause notices. Having done so, they cannot now invoke constitutional jurisdiction to stall the process at an intermediate stage.

16. In view of the foregoing discussion, this Court is of the considered opinion that no ground is made out for interference in exercise of constitutional jurisdiction; and **both the writ petitions**, being premature, not maintainable and devoid of merit, are accordingly **dismissed**. The petitioners shall, however, remain at liberty to avail any appropriate remedy provided under the relevant law and to raise all permissible pleas, including the question of maintainability of the ongoing proceedings, before the competent authority. The said authority shall adjudicate the



matter strictly in accordance with law, independently and without being influenced by any observation made herein.

(Hassan Nawaz Makhdoom)  
Judge

Approved for reporting.

Judge

Announced/dictated on 24.03.2026  
and signed on 02.04.2026.  
*\*Iqbal\**